

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT
LAHORE.
JUDICIAL DEPARTMENT

Case No: Cr. Misc. No.8742-B of 2019

Sami Ullah vs. The State, etc.

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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11.04.2019 Ch. Umar Hayat Bhatti, Advocate for the petitioner.
Mr. Tariq Javed, District Public Prosecutor with Ijaz, S.I.
Rana Ahsan Rasheed, Advocate for the complainant.

The petitioner having failed to get his post arrest bail in case FIR No.186/2018 dated 08.05.2018 registered u/s 365/302/34 PPC at Police Station Sadar Muridke, District Sheikhupura from the Court of learned Addl. Sessions Judge, vide order dated 06.02.2019, has prayed the same relief through the instant petition.

2. The brief allegation against the petitioner is that on 04.05.2018 at 07:00 p.m., Muhammad Zaman son of Karamat (deceased) on receiving a phone call went out of his house on motor-cycle and did not return. His mobile phone was also silent. The relatives kept on searching but could not trace him and thereafter Asghar Ali got the above said FIR registered regarding abduction of his son-in-law against un-known accused persons on 08.05.2018 at 08.45 a.m. The offence under Section 302-B PPC was added later on when dead body of Muhammad Zaman was traced out from a barren place near the water course vide supplementary statement recorded on 08.05.2018 of the complainant. The complainant of the instant case Asghar Ali, father-in-law of the deceased made second supplementary statement to the police on 15.06.2018

wherein he nominated the present petitioner alongwith one Muhammad Arif and Muhammad Ahmed as accused persons.

3. Heard. Record perused.

4. After having heard, the learned counsel for the parties and perusing the record it transpired that the alleged occurrence took place on 04.05.2018 at 07:00 p.m, whereas the matter was reported to the police on 08.05.2018 at 08:45 p.m., regarding the abduction of the deceased Muhammad Zaman by his father-in-law Asghar Ali complainant of the case with the delay of four days, the explanation which has not been advanced by the complainant while lodging the FIR. On 08.05.2018 the dead body was found from a barren place near the water course and the complainant got his supplementary statement recorded to the police on the same day but he has not nominated any accused in the said supplementary statement rather he showed suspicion against unknown culprits, thereafter, the complainant made another supplementary statement on 15.06.2018 in which he has nominated the present petitioner Sami Ullah and others stating therein that the deceased is his son-in-law and Sami Ullah wanted to marry with the wife of the deceased Gulnaz Fatima daughter of the complainant. The only incriminating evidence available against the petitioner is in the shape of extra-judicial confession of all the three accused persons before Nusrat Parveen, Basharat Parveen and Salman Asgher. The veracity of which cannot be taken into account at this stage as it would be the learned trial court which will decide the fate of this piece of evidence during the course of trial. The petitioner has been arrested in this case on 11.07.2018 and one motor-cycle allegedly belongs to the deceased

was got recovered from his possession but there is force in the arguments of the learned counsel for the petitioner that the said motor-cycle carries the different number as mentioned in the FIR. The challan has already been submitted before the learned trial Court and his further incarceration behind the bars would serve no useful purpose for the prosecution. Even otherwise Muhammad Arif co-accused has already been granted bail by this Court vide order dated 29.11.2018 and the petitioner also deserves the same relief on the basis of rule of consistency. Reliance in this regard is placed on the dictum laid down by the Hon'ble Supreme Court of Pakistan in the case of Muhammad Fazal alias Bodi vs. The State (1979 SCMR 09).

5. For what has been discussed supra there is sufficient reasons to believe that the case of the petitioner called further probe into his guilt, within the scope of Section 497(2) of the Code of Criminal Procedure 1898. Therefore, this petition is accepted and petitioner is admitted to post arrest bail subject to his furnishing bail bonds in the sum of Rs.2,00,000/- with one surety in the like amount to the satisfaction of learned trial Court.

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(MUHAMMAD WAHEED KHAN)
JUDGE

APPROVED FOR REPORTING

س. و. ک. ک.

JUDGE